

25STCV05405 25STCV05405

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 25STCV05405 Hearing Date: August 6, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 6, 2026 TRIAL DATE: Not Set

CASE: Tamara Patlogar v. City of Azusa, et al.

CASE NO.: 25STCV05405

MOTION

FOR DISCOVERY OF PEACE OFFICER PERSONNEL RECORDS (PITCHESS MOTION) AND OTHER DOCUMENTS

MOVING PARTY: Plaintiff Tamara Patlogar

RESPONDING PARTY: Defendant City of Azusa

CASE HISTORY:

02/26/25: Complaint filed.

TENTATIVE RULING:

Plaintiff's Pitchess Motion is

GRANTED.

The Court sets an in camera hearing in Department 507, Stanley Mosk Courthouse. The custodian of records is to produce at the hearing all potentially responsive documents for in camera inspection by the Court. At the hearing, the Court will set an appropriate date.

Moving Party to give notice.

BACKGROUND

This is an employment action. Plaintiff alleges she was a Police Administrative Services Manager for Defendant City of Azusa. Plaintiff alleges in 2017, she suffered an ocular migraine triggered by stress. She took medical leave from work to recover. Prior to this incident, Plaintiff observed Lieutenant Robert "Bob" Chivas verbally attacking a female employee during a meeting and promptly reported it to her supervisor. Plaintiff alleges that in 2019, she again witnessed and reported inappropriate interaction involving Chivas and another female employee.

Plaintiff also alleges that in or around February 2021, during a command staff meeting, Chivas publicly belittled Plaintiff, undermining her professional abilities and explicitly stating that she was incapable of performing her job duties. This was the first time Plaintiff had witnessed such a direct and hostile confrontation in a meeting, and she believed it was a clear act of sexism as Chivas did not treat any male counterparts in this manner. Plaintiff felt that Chivas's actions were

motivated by a personal bias against her as a woman in a leadership role, compounded by

his retaliation for her prior involvement in reporting his misconduct toward female

employees.

Plaintiff further alleges that shortly after the February 2021 meeting, in the spring of the same year, Plaintiff attended another meeting where Chivas erupted in intense rage upon learning that a female co-worker had named him in a lawsuit.

Plaintiff

alleges that in or around September 2022, Plaintiff was excluded by Chivas from being scheduled for basic peer support training.

Plaintiff

alleges that between June 2023 and August 2023, she reported an incident to Captain Landeros after Steven Rodriguez shared a concerning encounter with Sergeant Fernando Vasconcelos. Rodriguez explained that Vasconcelos had asked him to release booked evidence—a cell phone—outside of established policy and protocol for the property and evidence room, which Rodriguez oversaw. Rodriguez stated that when he refused to release the evidence without first consulting a supervisor, Vasconcelos responded in a threatening manner, telling Rodriguez, “You’ve crossed the line with me, bro,” as he walked out of his office. Rodriguez felt uncomfortable with this exchange, and since he was not willing to write it up himself, Plaintiff took the responsibility of submitting a formal memo to Captain Landeros regarding the incident since Plaintiff was Rodriguez’s supervisor.

Plaintiff

alleges that shortly after she submitted the memo regarding Vasconcelos, he began to ignore her.

Plaintiff

alleges in April 2023, Plaintiff filed a whistleblower complaint concerning the misuse of the California Law Enforcement Telecommunications System (“CLETS”). During an internal audit, Plaintiff alleges she discovered that the system had been improperly used in the course of an investigation.

Further,

Plaintiff alleges that on May 9, 2024, Plaintiff submitted a second memorandum addressing concerns about Lieutenant Chivas. In this memorandum, Plaintiff reported that Lieutenant Chivas had instructed her to destroy certain files that were part of pending litigation, which she refused to do.

Plaintiff

alleges her health condition worsened due to stress, and her accommodations that were put in place (including not working with Chivas or Landeros) were consistently ignored. Further, she alleges her supervisory duties were stripped away. Plaintiff alleges she was constructively discharged as a result of the

workplace being a toxic and unsupportive environment.

The

complaint seeks causes of action for (1) discrimination on the basis of sex/gender and disability; (2) harassment on the basis of sex/gender and disability; (3) retaliation on the basis of sex/gender and disability; (4) failure to prevent discrimination, harassment, and retaliation; (5) failure to provide reasonable accommodations; (6) failure to engage in the interactive process; and (7) violation of Labor Code section 1102.5.

Plaintiff moves for discovery of peace officer personal records.

DISCUSSION:

Legal Standard

There is a

special two-step procedure for securing disclosure of peace officer personnel records. (*Warrick v. Superior Court (City of Los Angeles Police Dept.)* (2005) 35 Cal.4th 1011, 1019.) First, the party seeking disclosure must file a motion that identifies the peace officer, the agency in possession of the records, a description of the records, who is seeking the records, as well as time and place of the hearing. (Evid. Code, § 1043(b)(1).) The motion must be accompanied by a declaration: showing “good cause” for disclosure of the records; setting forth the materiality of the records; and stating upon reasonable belief that the governmental agency has the requested documents. (Evid. Code, § 1043(b)(3).) This is a so-called “Pitchess” motion, derived from *Pitchess v. Superior Court* (1974) 11 Cal.3d 531.

The

Evidence Code section 1043(b) “good cause” declaration must be sufficiently specific “to preclude the possibility of [the movant] simply casting about for any helpful information.” (*People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) However, an attorney declaration based upon information and belief and containing hearsay may be used to evidence good cause in support of a Pitchess motion. (*Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1086.) The moving party need show only a “plausible factual foundation” for discovery—i.e., a scenario of officer misconduct that might occur or could have occurred. (*Warrick, supra*, 35 Cal.4th at 1026.) All

that is required is the presentation of a scenario that might have or could have occurred; i.e., a “relatively low threshold.” (Uybungco v. Superior Court (San Diego Police Dept.) (2008) 163 Cal. App. 4th 1043, 1048; see also Blumberg v. Superior Court (2011) 197 Cal. App. 4th 1245, 1248 (the good cause requirement of section 1043(b) “embodies a ‘relatively low threshold’ for discovery’ [citation], under which a defendant need demonstrate only ‘a logical link between the defense proposed and the pending charge’ and describe with some specificity ‘how the discovery being sought would support such a defense’”).)

Second, if the court finds good cause, then an in camera hearing must be held. (Slayton v. Sup.Ct. (Slayton) (2006) 146 Cal.App.4th 55, 61.) After personally examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are “relevant to the matter involved in the pending litigation.” (Evid. Code §1045(a); People v. Mooc, supra, 26 Cal.4th at 1226.) If disclosure is ordered, the court must also order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” (Code Civ. Proc., §1045(e); see Alford v. Sup.Ct. (People) (2003) 29 Cal.4th 1033, 1039–1040.)

Pitchess Motion

Plaintiff

seeks the following documents which she contends will support her causes of action.

REQUEST

FOR PRODUCTION NO. 1: Any and all documents (including e- mails, letters, text messages, investigative reports, etc.) that refer or relate to complaints of discrimination, harassment, or retaliation made by employees of Responding Party against Robert “Bob” Chivas from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 2: Any and all documents (including e- mails, letters, text messages, investigative reports, etc.) that refer or relate to complaints of discrimination, harassment, or retaliation based on sex/gender made by employees of Responding Party against

Robert "Bob" Chivas from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 4: Any and all

documents (including e- mails, letters, text messages, investigative reports, etc.) that refer or relate to any reprimand, notations on performance reviews, write ups, or disciplinary action against Robert "Bob" Chivas related to discrimination, harassment, or retaliation from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 5: Any and all

documents (including e- mails, letters, text messages, investigative reports, etc.) that refer or relate to any reprimand, notations on performance reviews, write ups, or disciplinary action against Robert "Bob" Chivas related to discrimination, harassment, or retaliation based on sex/gender from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 7: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to complaints of discrimination, harassment, or retaliation made by employees of Responding Party against Robert Landeros from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 8: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to complaints of discrimination, harassment, or retaliation based on sex/gender made by employees of Responding Party against Robert Landeros from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 10: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to any reprimand, notations on performance reviews, write ups, or disciplinary action against Robert Landeros related to discrimination, harassment, or retaliation from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 11: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to any reprimand, notations on performance reviews, write ups, or disciplinary action against Robert Landeros related to discrimination, harassment, or retaliation based on sex/gender from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 14: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to complaints of discrimination, harassment, or retaliation based on sex/gender made by employees of Responding Party against Fernando Vasconcelos from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 15: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to any reprimand, notations on performance reviews, write ups, or disciplinary action against Fernando Vasconcelos related to discrimination, harassment, or retaliation from January 2016 to the present.

REQUEST

FOR PRODUCTION NO. 16: Any and all

documents (including e-mails, letters, text messages, investigative reports, etc.) that refer or relate to any reprimand, notations on performance reviews, write ups, or disciplinary action against Fernando Vasconcelos related to discrimination, harassment, or retaliation based on sex/gender from January 2016 to the present.

Step One: Good Cause

Plaintiff's counsel submits a declaration stating that the requested documents will assist Plaintiff in proving her claims that Defendants discriminated against, retaliated against, and harassed her due to her sex/gender and for engaging in protected activity by pursuing her rights under the FEHA. Counsel declares that the requested documents will also assist Plaintiff in proving that Defendants not only condoned and ratified the violations, but also actively perpetrated such actions against her. (Sorejian Decl., ¶ 9.)

Counsel avers declares that the requested information is believed to be admissible under several theories: as evidence

of Defendants' FEHA violations; as evidence of Defendants' failure to take appropriate corrective action, despite being on notice; evidence tending to show Defendants' and one or more of its affiliated witnesses lack credibility, and/or have engaged in similar employment related misconduct and/or acts of dishonesty, and evidence of Defendants' and/or officers' pattern and practice of engaging in, encouraging, and/or failing to prevent or correct FEHA violations, as demonstrated by the inadequacy of the investigations. (Id., ¶ 10.)

Defendants expressly recognize the Pitchess procedure's applicability here and that the "good cause" showing required by Evidence Code section 1043(b)(3) is a relatively low threshold. (See *Riske v. Superior Court* (2016) 6 Cal.App.5th 647 ("Riske").)

Defendants do not ask this Court to deny in-camera review outright as to records that bear a genuine relationship to sex/gender-based misconduct or to retaliation for Plaintiff's protected activity. However, Defendants argue that several of Plaintiff's sixteen requests are not reasonably tailored to obtain such documents.

Defendants

contend that as drafted, certain requests (1) reach back a full ten years without regard to the five- year limitation Plaintiff's own brief invokes, and (2) sweep in complaints, if any, having nothing to do with sex/gender or retaliation at all, even though Plaintiff's theory of the case is expressly limited to sex/gender discrimination, harassment and whistleblower retaliation.

As noted

above, the requests seek documents from January 2016 to the present. Defendant contends that Plaintiff has made no attempt, by declaration or otherwise, to establish a plausible factual foundation of materiality for the additional five years (January 2016 through approximately early 2020).

However, Plaintiff's complaint

alleges that in 2017, Plaintiff witnessed Defendant Chivas verbally attacking a female employee. Plaintiff's counsel has stated that they seek evidence of Defendants' pattern and practice of engaging in, encouraging, and/or failing to prevent or correct FEHA violations. (Sorejian Decl., ¶ 10.)

Thus, there is good cause for the 10-year scope.

Next, Defendant argues that Request

Nos. 1, 4, 7 and 10 should be limited to complaints and discipline bearing a nexus to sex/gender or to retaliation for protected activity. Defendant argues that Request Nos. 1 and 4 (as to Chivas) and Request Nos. 7 and 10 (as to Landeros) are too broad and must be limited to sex/gender. As drafted, Request Nos. 1, 4, 7, and 10 would reach complaints bearing no relationship whatsoever to Plaintiff's own alleged protected activity/characteristics.

However, the scope of discovery is not so limited. (See Haggerty, *supra*, 117

Cal.App.4th at 1091 ("the issue here is not whether the report should or would be admissible at trial, but whether the factual information contained in the report could lead to the discovery of relevant and admissible evidence.")) As Plaintiff points out, these documents are relevant to show past, similar misconduct of Chivas and Landeros. Further, Plaintiff argues the documents will show that these officers had a history of discriminatory, harassing, and retaliatory behavior and Entity Defendants did nothing about it. Additionally, Plaintiff's disability-related causes of action independently place at issue whether Chivas and Landeros discriminated against or harassed employees on the basis of disability, apart from sex/gender or whistleblowing.

As such, Plaintiff has shown good cause.

Step Two: In Camera

Disclosure Determination Upon Review of All Potentially Relevant Documents

[I]f "the trial court concludes the defendant has fulfilled these prerequisites and made a showing of good cause, the custodian of records should bring to court all documents 'potentially relevant' to the . . . motion. . . . The trial court 'shall examine the information in chambers' (Evid. Code, § 1045, subd. (b)), 'out of the presence and hearing of all persons except the person authorized [to possess the records] and such other persons [the custodian of records] is willing to have present.' ... Subject to statutory exceptions and limitations . . . the trial court should then disclose to the [moving party] 'such information [that] is relevant to the subject matter involved in the pending litigation.' [Citations.]"

(Haggerty, supra,
117 Cal.App.4th at 1086, bold emphasis added.)

If
disclosure is ordered, the court must also order that the disclosed
information may not be used “for any purpose other than a court proceeding
pursuant to applicable law.” (Evid. Code, § 1045, subd. (e); see Alford
v. Superior Court (2003) 29 Cal.4th 1033, 1039-1040 [overruled on
other grounds].)

Defendant also argues that before disclosure of any records to
Plaintiff, the Court should permit redaction of third-party information. To the extent
that information should be redacted or deemed confidential, the Court
will make these determinations after the in camera hearing.

CONCLUSION:

Accordingly, Plaintiff’s Pitchess Motion is
GRANTED.

The Court sets an in camera
hearing in Department 507, Stanley Mosk Courthouse. The custodian of
records is to produce at the hearing all potentially responsive documents
for in camera inspection by the Court. At the hearing,
the Court will set the appropriate date.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: August 6, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.